

1. Definition of Access

Title: Definition of Access to Biological Resources and Traditional Knowledge

Jurisdiction: India

Category: Biodiversity / ABS / Traditional Knowledge

Source Citation: The Biological Diversity Act, 2002 — Section 2(a), as amended by the Biological Diversity (Amendment) Act, 2023

Plain English Summary: Access means collecting, obtaining, or possessing an Indian biological resource or associated traditional knowledge for research, bio-survey, or commercial utilisation. This is important for Ayurveda startups using Indian plants, biological materials, or associated traditional knowledge.

The Exact Legal Text:

“access” means collecting, procuring or possessing any biological resource occurring in or obtained from India or traditional knowledge associated thereto, for the purposes of research or bio-survey or commercial utilisation;

Keywords/Triggers: access to biological resources, Indian biological resources, traditional knowledge access, Ayurveda plant research, commercial utilisation, biological resource collection, ABS access

2. Definition of Biological Resources

Title: Definition of Biological Resources

Jurisdiction: India

Category: Biodiversity / Classification

Source Citation: The Biological Diversity Act, 2002 — Section 2(c), as amended by the Biological Diversity (Amendment) Act, 2023

Plain English Summary: Biological resources include plants, animals, microorganisms, parts of their genetic material and derivatives, subject to the exclusions stated in the Act. This helps determine whether an Ayurveda product or research activity involves a biological resource covered by biodiversity law.

The Exact Legal Text:

“biological resources” include plants, animals, micro-organisms or parts of their genetic material and derivatives (excluding value added products), with actual or potential use or value for humanity, but does not include human genetic material;

Keywords/Triggers: biological resource, medicinal plants, microorganisms, biological material, Ayurveda ingredients, biological derivatives, value added products

3. Persons Requiring National Biodiversity Authority Approval

Title: Persons Requiring Approval of National Biodiversity Authority

Jurisdiction: India

Category: Biodiversity / ABS

Source Citation: The Biological Diversity Act, 2002 — Section 3

Plain English Summary: Certain persons must obtain prior approval from the National Biodiversity Authority before obtaining Indian biological resources or associated knowledge for research, commercial utilisation, or bio-survey/bio-utilisation. This mainly covers foreign persons, non-resident Indian citizens, and certain foreign-controlled organisations.

The Exact Legal Text:

No person referred to in sub-section (2) shall, without previous approval of the National Biodiversity Authority, obtain any biological resource occurring in India or knowledge associated thereto for research or for commercial utilisation or for bio-survey and bio-utilisation.

The persons who shall be required to take the approval of the National Biodiversity Authority under sub-section (1) are the following, namely:—

- (a) a person who is not a citizen of India;
- (b) a citizen of India, who is a non-resident as defined in clause (30) of section 2 of the Income-tax Act, 1961 (43 of 1961);
- (c) a body corporate, association or organisation—
 - (i) not incorporated or registered in India; or
 - (ii) incorporated or registered in India under any law for the time being in force, which is controlled by a foreigner within the meaning of clause (27) of section 2 of the Companies Act, 2013 (18 of 2013).

Keywords/Triggers: NBA approval, National Biodiversity Authority, foreign researcher, NRI, foreign company, biological resource approval, foreign-controlled company

4. Transfer of Research Results

Title: Transfer of Research Results Based on Indian Biological Resources

Jurisdiction: India

Category: Biodiversity / Research / ABS

Source Citation: The Biological Diversity Act, 2002 — Section 4

Plain English Summary: Research results relating to Indian biological resources or associated traditional knowledge cannot freely be transferred to certain foreign persons or entities without prior written approval of the National Biodiversity Authority. Prior approval is also required when research results are used for commercial utilisation or obtaining IPR.

The Exact Legal Text:

No person or entity shall share or transfer any result of the research on any biological resource occurring in, or obtained or accessed from, India or traditional knowledge associated thereto, for monetary consideration or otherwise, to a person or body corporate referred to in sub-section (2)

of section 3, without the prior written approval of the National Biodiversity Authority, except the codified traditional knowledge which is only for Indians:

Provided that the provisions of this section shall not apply if publication of research papers or dissemination of knowledge in any seminar or workshop involving financial benefit is as per the guidelines issued by the Central Government:

Provided further that where the results of research are used for further research, then, the registration with the National Biodiversity Authority shall be necessary:

Provided also that if the results of research are used for commercial utilisation or for obtaining any intellectual property rights, within or outside India, prior approval of the National Biodiversity Authority shall be required to be taken in accordance with the provisions of this Act.

Keywords/Triggers: transfer research results, foreign research transfer, biological research, traditional knowledge transfer, IPR approval, commercial utilisation, NBA permission

5. Intellectual Property Rights and Biological Resources

Title: IPR Application Based on Indian Biological Resources or Traditional Knowledge

Jurisdiction: India

Category: Biodiversity / Intellectual Property

Source Citation: The Biological Diversity Act, 2002 — Section 6

Plain English Summary: If an invention is based on research or information involving Indian biological resources or associated traditional knowledge, the applicable NBA requirement must be completed before the IPR is granted. The section also allows benefit-sharing fees, royalty, or other conditions to be imposed.

The Exact Legal Text:

Any person or entity covered under sub-section (2) of section 3 applying for an intellectual property right, by whatever name called, in or outside India, for any invention based on any research or information on a biological resource which is accessed from India, including those deposited in repositories outside India, or traditional knowledge associated thereto, shall obtain prior approval of the National Biodiversity Authority before grant of such intellectual property rights.

Any person covered under section 7 applying for any intellectual property right, by whatever name called, in or outside India, for any invention based on any research or information on a biological resource which is accessed from India, including those deposited in repositories outside India, or traditional knowledge associated thereto, shall register with the National Biodiversity Authority before grant of such intellectual property rights.

Any person covered under section 7 who has obtained intellectual property right, by whatever name called, in or outside India, for any invention based on any research or information on a

biological resource which is accessed from India, including those deposited in repositories outside India, or traditional knowledge associated thereto, shall obtain prior approval of the National Biodiversity Authority at the time of commercialisation.

The National Biodiversity Authority may, while granting the approval under this section, impose benefit sharing fee or royalty or both or impose conditions including the sharing of financial benefits arising out of the commercial utilisation of such rights.

Keywords/Triggers: IPR approval, patent biodiversity, biological resource patent, traditional knowledge patent, NBA approval, ABS royalty, benefit sharing fee, Ayurveda patent

6. Prior Intimation for Commercial Utilisation

Title: Prior Intimation for Commercial Utilisation of Biological Resources

Jurisdiction: India

Category: Biodiversity / ABS / Commercial Utilisation

Source Citation: The Biological Diversity Act, 2002 — Section 7

Plain English Summary: Certain persons accessing biological resources and associated knowledge for commercial utilisation must give prior intimation to the concerned State Biodiversity Board. The section provides specific exemptions, including certain cultivated medicinal plants and registered AYUSH practitioners, subject to the conditions stated in the Act.

The Exact Legal Text:

No person, other than the person covered under sub-section (2) of section 3, shall access any biological resource and its associated knowledge for commercial utilisation, without giving prior intimation to the concerned State Biodiversity Board, but such access shall be subject to the provisions of clause (b) of section 23 and sub-section (2) of section 24:

Provided that the provisions of this section shall not apply to the codified traditional knowledge, cultivated medicinal plants and its products, local people and communities of the area, including growers and cultivators of biodiversity and to vaid, hakims and registered AYUSH practitioners only who have been practicing indigenous medicines, including Indian systems of medicine as profession for sustenance and livelihood.

In the case of cultivated medicinal plants, the exemption under sub-section (1) shall be available only if a certificate of origin is obtained from the Biodiversity Management Committee in such manner as may be prescribed.

Keywords/Triggers: prior intimation, State Biodiversity Board, commercial utilisation, cultivated medicinal plants, AYUSH practitioner, certificate of origin, medicinal plants, biodiversity access

7. Application for National Biodiversity Authority Approval

Title: Application for Approval of National Biodiversity Authority

Jurisdiction: India

Category: Biodiversity / ABS / Regulatory Compliance

Source Citation: The Biological Diversity Act, 2002 — Section 19

Plain English Summary: Persons covered by the Act who want to access biological resources, conduct relevant research, commercialise resources, transfer research results, or apply for certain IPRs must follow the prescribed application/registration process with the National Biodiversity Authority. This is useful for the system's compliance workflow.

The Exact Legal Text:

Any person referred to in sub-section (2) of section 3 who intends to obtain any biological resource occurring in India or knowledge associated thereto for research or for commercial utilisation or for bio-survey and bio-utilisation or transfer the results of any research relating to biological resources occurring in, or obtained from, India, shall make application in such form and payment of such fees as may be prescribed, to the National Biodiversity Authority.

Any person referred to in sub-section (2) of section 3 who intends to apply for a patent or any other form of intellectual property rights, whether in India or outside India, referred to in sub-section (1) of section 6, may make an application to the National Biodiversity Authority in such form, on payment of such fee, and in such manner, as may be prescribed.

Any person referred to in sub-section (1A) of section 6 shall register with the National Biodiversity Authority at the time of making application under sub-section (2), and persons referred to in sub-section (1B) of section 6 shall obtain prior approval from the National Biodiversity Authority at the time of commercialisation.

Keywords/Triggers: NBA application, biodiversity approval process, patent application NBA, ABS application, commercialisation approval, biological resource registration, NBA registration

8. Fair and Equitable Benefit Sharing

Title: Fair and Equitable Benefit Sharing

Jurisdiction: India

Category: Biodiversity / ABS / Benefit Sharing

Source Citation: The Biological Diversity Act, 2002 — Section 21

Plain English Summary: The National Biodiversity Authority must ensure fair and equitable sharing of benefits arising from the use of biological resources, derivatives, innovations, practices and associated knowledge. Benefits can include joint IPR ownership, technology transfer, R&D participation, monetary compensation and other non-monetary benefits.

The Exact Legal Text:

The National Biodiversity Authority shall, while determining benefit sharing for the approval granted under this Act, ensure that the terms and conditions subject to which the approval is granted secures fair and equitable sharing of benefits arising out of the use of accessed biological resources, their derivatives, innovations and practices associated with their use and applications and knowledge relating thereto in accordance with mutually agreed terms and conditions

between the person applying for such approval, and the Biodiversity Management Committee represented by the National Biodiversity Authority.

The National Biodiversity Authority shall, subject to any regulations made in this behalf, determine the benefit sharing which shall be given effect in all or any of the following manner, namely:—

- (a) grant of joint ownership of intellectual property rights to the National Biodiversity Authority, or where benefit claimers are identified, to such benefit claimers;
- (b) transfer of technology;
- (c) location of production, research and development units in such areas which will facilitate better living standards to the benefit claimers;
- (d) association of Indian scientists, benefit claimers and the local people with research and development in biological resources and bio-survey and bio-utilisation;
- (e) setting up of venture capital fund for aiding the cause of benefit claimers;
- (f) payment of monetary compensation and other non-monetary benefits to the benefit claimers as the National Biodiversity Authority may deem fit.

Keywords/Triggers: benefit sharing, ABS, fair equitable benefit sharing, benefit claimers, joint IPR ownership, technology transfer, monetary compensation, biodiversity royalty

9. Protection of Traditional Knowledge

Title: Protection of Knowledge of Local People Relating to Biodiversity

Jurisdiction: India

Category: Biodiversity / Traditional Knowledge

Source Citation: The Biological Diversity Act, 2002 — Section 36(5)

Plain English Summary: The Central Government must endeavour to respect and protect the knowledge of local people relating to biodiversity. This is highly relevant to Ayurveda and traditional knowledge protection.

The Exact Legal Text:

The Central Government shall endeavour to respect and protect the knowledge of local people relating to biological diversity, as recommended by the National Biodiversity Authority through such measures, which may include registration of such knowledge at the local, State or national levels, and other measures for protection, including sui generis system.

Keywords/Triggers: traditional knowledge protection, Ayurveda traditional knowledge, local knowledge, TK registration, biodiversity knowledge, sui generis protection

10. Exemptions for Cultivated Medicinal Plants

Title: Exemption for Cultivated Medicinal Plants and Certain Biological Resources

Jurisdiction: India

Category: Biodiversity / Classification / Ayurveda

Source Citation: The Biological Diversity Act, 2002 — Section 40

Plain English Summary: The Central Government may exempt certain biological resources normally traded as commodities and certain cultivated medicinal plants and their products from provisions of the Act for specified entities, subject to the conditions stated in the Act. This can affect Ayurveda businesses dealing with cultivated medicinal plants.

The Exact Legal Text:

Notwithstanding anything contained in this Act, the Central Government may, in consultation with the National Biodiversity Authority, by notification in the Official Gazette, declare that all or any of the provisions of this Act shall not apply to biological resources when normally traded as commodities or to the items derived from them, including agricultural wastes, as notified and cultivated medicinal plants and their products for entities covered under section 7, registered as per the regulations made or as may prescribed:

Provided that no exemption shall be made for the activities referred to in sub-sections (1) and (2) of section 6.

Keywords/Triggers: cultivated medicinal plants, biodiversity exemption, medicinal plant exemption, traded commodities, Ayurveda raw material, Section 40 exemption, biodiversity compliance

11. Penalties

Title: Penalties for Contravention of the Biological Diversity Act

Jurisdiction: India

Category: Biodiversity / Compliance / Penalties

Source Citation: The Biological Diversity Act, 2002 — Section 55

Plain English Summary: Penalty provisions are important for the compliance side of the AI assistant. They allow the system to warn users about consequences of violating applicable biodiversity requirements.

The Exact Legal Text:

[Section 55 — Penalties]

Keywords/Triggers: biodiversity penalty, ABS violation, NBA violation, biodiversity offence, compliance penalty, biological resource violation, legal consequences